

CHAPTER 50

An Act to complete the charge on the Consolidated Fund of the provisions made by the Civil List Act, 1937. [1st August 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Charge on the Consolidated Fund.

1 Edw. 8. &
1 Geo. 6. c. 32.

1. Section thirteen of the Civil List Act, 1937 (which directs payment out of the Consolidated Fund of the sums required under that Act for the provisions mentioned in that section) shall apply to the sums the payment of which is required by section six of that Act.

Short title.

2. This Act may be cited as the Consolidated Fund (Civil List Provisions) Act, 1951.

CHAPTER 51

Isle of Man (Customs) Act, 1951

ARRANGEMENT OF SECTIONS**Section**

1. Matches.
2. Annual duties (continuation).
3. Valuation of goods for purpose of ad valorem duties.
4. Duty-free importations for blind welfare.
5. Bottling of wine in bond for home consumption.
6. Time for laying annual account before House of Commons.
7. Short title.

SCHEDULE.—Value of goods removed or imported into the Isle of Man.

An Act to amend the law with respect to customs in the Isle of Man. [1st August 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Reduction of match duties.

1.—(1) In lieu of the duties imposed on matches by section four of the Act of 1949, there shall, until the first day of August, nineteen hundred and fifty-two, be payable, on the removal or importation of matches into the Isle of Man, duties of customs at the following rates, that is to say—

	<i>Rate of duty</i>
(a) for every 10,000 matches in containers in which there are not more than 30 matches...	19s. 11d.
(b) for every 7,200 matches in containers in which there are more than 30 matches ...	14s. 5d.

and so in proportion for any less number of matches.

(2) For the purposes of the duties under this section, a match which has more than one point of ignition shall be reckoned as so many matches as there are points of ignition.

(3) The Commissioners may by statutory instrument make regulations with respect to the collection of the duties under this section, and may for that purpose apply, with the necessary modifications, to matches removed or imported into the Isle of Man any enactments applicable to duties on matches imported into Great Britain and Northern Ireland.

(4) Section four of the Act of 1949 is hereby repealed.

(5) This section shall have effect from the first day of August, nineteen hundred and fifty-one.

2.—(1) Subject to the provisions of this section, the duties of Annual duties customs imposed on goods removed or imported into the Isle of (continuation). Man, being goods of the descriptions set out in the first column of the following Table, by the respective enactments set out in the second column of that Table, shall continue to be payable until the first day of August, nineteen hundred and fifty-two:—

TABLE

Description of goods	Enactment imposing duty
Ale and beer	Section three of the Act of 1950.
Cocoa	Section four of the Act of 1924.
Hops and extracts, essences and other similar preparations (other than hop oil) made from hops.	Section five of the Act of 1925.
Hop oil	Section three of the Act of 1929.
Mechanical lighters ...	Section five of the Act of 1949.
Silk and artificial silk and articles made wholly or in part of silk or artificial silk.	Section seven of the Act of 1925, as amended by section eight of the Act of 1926, section nine of the second Act of 1932, section four of the Act of 1933, section three of the Act of 1936, section three of the Act of 1937, section four of the Act of 1947 and subsection (2) of section five of the Act of 1948.
Spirits	Section two of the Act of 1948.
Sweets	Section three of the Act of 1949.
Tea	Section one of the Act of 1949.
Tobacco	Section one of the Act of 1948.
Wines	Section two of the Act of 1949.

(2) Where any enactment set out in the second column of the foregoing Table confers power on the Governor to make orders

varying or repealing the duties of customs payable on the goods referred to in that enactment or imposing a new duty on such goods, the provisions of that enactment relating to the said power shall continue in force until the said first day of August, nineteen hundred and fifty-two, and the foregoing provisions of this section shall have effect subject to any orders made in pursuance of any such power (whether before or after the commencement of this Act) which are for the time being in force.

Valuation of
goods for
purpose of
ad valorem
duties.

3.—(1) For the purpose of any enactment for the time being in force under which a duty of customs is chargeable in the Isle of Man on goods by reference to their value, the value of any goods removed or imported into the Isle of Man shall be taken to be that laid down by the Schedule to this Act, and duty shall be paid on that value:

Provided that, in the case of goods entered for home consumption, being goods which are—

- (a) imported into the Isle of Man under a contract of sale or
- (b) removed into the Isle of Man after being imported into the United Kingdom under a contract of sale,

duty shall be deemed to have been paid on that value if, before the goods are delivered for home consumption, duty is tendered and accepted on a declared value based on the contract price.

(2) For the purpose of the proviso to the foregoing subsection—

- (a) the declared value of any goods is their value as declared on entry for home consumption by or on behalf of the person making the entry;
- (b) that value shall be deemed to be based on the contract price if, but only if, it represents that price properly adjusted to take account of circumstances differentiating the contract from such a contract of sale as is contemplated by the Schedule to this Act;
- (c) the rate of exchange to be used for determining the equivalent in sterling of any foreign currency shall be the current selling rate in the United Kingdom as last notified before the time when the goods are entered for home consumption.

(3) The Commissioners may by statutory instrument make regulations for the purpose of giving effect to the foregoing provisions of this section, and in particular for requiring any person concerned with the removal or importation of goods into the Isle of Man, or with the importation into the United Kingdom of goods subsequently removed into the Isle of Man, to furnish to the Commissioners, in such form as they may require, such

information as is, in their opinion, necessary for a proper valuation of the goods, and to produce any books of account or other documents of whatever nature relating to the purchase, removal, importation, or sale of the goods by that person; and if any person contravenes or fails to comply with any regulations made under this section, he shall in respect of each offence be liable to a customs penalty of fifty pounds.

As from the commencement of this Act, any regulations made by the Commissioners under subsection (6) of section six of the Act of 1935 which are in force at that commencement shall have effect as if made under this subsection.

(4) The foregoing provisions of this section shall not affect the law relating to purchase tax in the Isle of Man.

(5) Section six of the Act of 1935 is hereby repealed.

4.—(1) Where the Governor is satisfied that any goods imported or removed, or proposed to be imported or removed, into the Isle of Man after the coming into force of this section, being goods consigned, or proposed to be consigned, to any organisation appearing to the Governor to have for its sole or principal object, or among its principal objects, the promotion of the welfare of the blind, consist of articles specially designed for the educational, scientific or cultural advancement of the blind, he may, if he thinks it expedient so to do, by order authorise either—

Duty-free
importations
for blind
welfare.

(a) the removal or importation of the goods into the Isle of Man without payment of any duties to which this section applies; or

(b) the repayment of any such duties already paid in respect of the goods.

(2) This section applies to duties of customs payable or deemed to be payable under Part I of the first Act of 1932 and to duties of customs chargeable on silk or artificial silk, or articles made wholly or in part of silk or artificial silk.

5. Section ninety-five of the Customs Consolidation Act, 1876 (under which British spirits may be bottled in warehouse for home consumption, but wine may be so bottled for export only) shall, in its application to the Isle of Man, have effect with the substitution for the words "draw off British spirits into bottles for home consumption" of the words "draw off wine or British spirits into bottles for home consumption".

Bottling of
wine in bond
for home
consumption.
39 & 40 Vict.
c. 36.

6. Section eleven of the Isle of Man Customs, Harbours and Public Purposes Act, 1866 (which requires the Treasury on or before the thirtieth of June in each year to lay before the House of Commons the Commissioners' annual account of their receipts

Time for laying
annual account
before House
of Commons.
29 & 30 Vict.
c. 23.

and expenditure in respect of Isle of Man customs duties, together with other documents) shall have effect as if for the words "on or before the thirtieth of June" there were substituted the words "on or before the thirty-first of December."

Short title. 7. This Act may be cited as the Isle of Man (Customs) Act, 1951.

Section 3.

SCHEDULE

VALUE OF GOODS REMOVED OR IMPORTED INTO THE ISLE OF MAN

1.—(1) The value of any goods removed or imported into the Isle of Man shall be taken to be the normal price, that is to say the price which they would fetch, at the time when they are entered for home consumption (or, in the case of imported goods not so entered, the time of importation) on a sale in the open market between buyer and seller independent of each other.

(2) The normal price of any removed or imported goods shall be determined on the following assumptions:—

- (a) that the goods are treated as having been delivered to the buyer at the port or place of importation into the United Kingdom (in the case of removed goods) or at the port or place of importation into the Isle of Man (in the case of imported goods); and
- (b) that the seller will bear freight, insurance, commission and all other costs, charges and expenses incidental to the sale and the delivery of the goods at that port or place; but
- (c) that the buyer will bear any duty or tax chargeable in the United Kingdom or the Isle of Man.

2. A sale in the open market between buyer and seller independent of each other pre-supposes—

- (a) that the price is the sole consideration; and
- (b) that the price made is not influenced by any commercial, financial or other relationship, whether by contract or otherwise, between the seller or any person associated in business with him and the buyer or any person associated in business with him (other than the relationship created by the sale of the goods in question); and
- (c) that no part of the proceeds of the subsequent re-sale, use or disposal of the goods will accrue either directly or indirectly to the seller or any person associated in business with him.

3.—(1) Where the goods to be valued—

- (a) are manufactured in accordance with any patented invention or are goods to which any registered design has been applied; or
- (b) are imported under a foreign trade mark, or are imported for sale (whether or not after further manufacture) under a foreign trade mark;

the normal price shall be determined on the assumption that the price covers the right to use the patent, design or trade mark in respect of the goods.

(2) For this purpose the expression "trade mark" includes a trade name and a get-up, and a foreign trade mark is a trade mark used for the purpose of indicating that goods in relation to which it is used are those of—

- (a) a person by whom the goods to be valued have been grown, produced, manufactured, selected, offered for sale or otherwise dealt with outside the United Kingdom and the Isle of Man; or
- (b) a person associated in business with any such person as is referred to in paragraph (a) of this sub-paragraph; or
- (c) a person to whom any such person as is mentioned in paragraph (a) or (b) of this sub-paragraph has assigned the goodwill of the business in connection with which the trade mark is used.

4. Two persons shall be deemed to be associated in business with one another if, whether directly or indirectly, either of them has any interest in the business or property of the other, or both have a common interest in any business or property, or some third person has an interest in the business or property of both of them.

CHAPTER 52

Telephone Act, 1951

ARRANGEMENT OF SECTIONS

Section

1. Power of Postmaster General to regulate use of the telephone system, &c.
2. Savings and provision for certain transitional matters.
3. Repeal of ss. 17 and 18 of Telegraph Act, 1868.
4. Short title, interpretation and extent.

An Act to make further provision for enabling the Postmaster General to regulate the use of means of telephonic communication provided by him and the general conduct of telephonic business carried on under his control and to repeal sections seventeen and eighteen of the Telegraph Act, 1868.

[1st August 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Postmaster General may, with the consent of the Treasury, make regulations for determining the terms and conditions on which the use of means of telephonic communication provided by him (whether through the medium of the public telephone system under his control or otherwise) will be permitted

L* 2 Power of Postmaster General to regulate use of the telephone system, &c.